

Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025

SENATE BILL NO. 2386
(Senators Van Oosting, Gerhardt, Roers)
(Representatives Motschenbacher, Holle, Hauck)

AN ACT to amend and reenact subsection 3 of section 23-09.5-02 of the North Dakota Century Code, relating to cottage food transactions; and to declare an emergency.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Subsection 3 of section 23-09.5-02 of the North Dakota Century Code is amended and reenacted as follows:

3. Transactions under this section may not:
 - a. ~~Involve interstate commerce;~~
 - b. ~~Be conducted over the internet or phone, through the mail, or by consignment;~~
 - e. Include the sale of uninspected products made from meat, except as provided under subdivision ~~db~~; ~~or~~
 - d.b. Include the sale of uninspected products made from poultry, unless:
 - (1) The cottage food operator slaughters no more than one thousand poultry raised by the cottage food operator during the calendar year;
 - (2) The cottage food operator does not buy or sell poultry products, except products produced from poultry raised by the cottage food operator; and
 - (3) The poultry product is not adulterated or misbranded-; or
 - c. Include the sale of poultry products if the transaction involves interstate commerce.

SECTION 2. EMERGENCY. This Act is declared to be an emergency measure.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2386 and that two-thirds of the members-elect of the Senate voted in favor of said law.

Vote: Yeas 45 Nays 2 Absent 0

President of the Senate

Secretary of the Senate

This certifies that two-thirds of the members-elect of the House of Representatives voted in favor of said law.

Vote: Yeas 90 Nays 1 Absent 3

Speaker of the House

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,
at _____ o'clock _____ M.

Secretary of State